

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Anderson	Team: Squad #11	CCRB Case #: 201900361	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/04/2019 4:24 PM	Location of Incident: East Tremont Avenue Subway Station	Precinct: 48	18 Mo. SOL 7/4/2020	EO SOL 2/18/2021	
Date/Time CV Reported Fri, 01/04/2019 11:53 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/14/2019 11:03 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Josmar Loveraz	19977	962557	TB DT12
2. POF Giselle Batista	01123	960214	TB DT12
3. POM Richard Santana	02707	951203	TB DT12

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Isauris Valdez	23025	964327	TB DT12
2. SGT Kenneth McNair	04049	939002	TB DT12

Officer(s)	Allegation	Investigator Recommendation
A.POM Josmar Loveraz	Abuse: Police Officer Josmar Loveraz threatened to arrest § 87(2)(b)	
B.POF Giselle Batista	Abuse: Police Officer Giselle Batista threatened to arrest § 87(2)(b)	
C.POM Josmar Loveraz	Abuse: Police Officer Josmar Loveraz interfered with § 87(2)(b)'s use of a recording device.	
D.POF Giselle Batista	Abuse: Police Officer Giselle Batista refused to provide her name to § 87(2)(b)	
E.POF Giselle Batista	Abuse: Police Officer Giselle Batista refused to provide her shield number to § 87(2)(b)	
F.POF Giselle Batista	Abuse: Police Officer Giselle Batista failed to provide § 87(2)(b) with a business card.	
G.POM Richard Santana	Abuse: Police Officer Richard Santana failed to provide § 87(2)(b) with a business card.	

Case Summary

On January 04, 2019, a 911 operator called the IAB and transferred § 87(2)(b) who filed this complaint, which was subsequently received at the CCRB on January 14, 2019.

On January 4, 2019, at approximately 4:24 p.m., § 87(2)(b) entered the East Tremont Avenue subway station in the Bronx and was stopped by PO Josmar Loveraz of Transit Bureau District 12. PO Giselle Batista, PO Richard Santana, and PO Isauris Valdez, all from Transit Bureau District 12 also arrived. PO Loveraz and PO Batista both threatened to arrest § 87(2)(b) (Allegation A -Abuse of Authority: Threat of arrest, § 87(2)(g) (Allegation B - Abuse of Authority: Threat of arrest, § 87(2)(g)

§ 87(2)(b) attempted to use his cell phone to record footage of the incident, and PO Loveraz instructed him to cease doing so (Allegation C -Abuse of Authority: Interference with recording device, § 87(2)(g) § 87(2)(b) requested PO Batista's name and shield number, and she refused to provide this information (Allegation D -Abuse of Authority: Refusal to provide name, § 87(2)(g) (Allegation E -Abuse of Authority: Refusal to provide shield number, § 87(2)(g)

At the conclusion of the incident, § 87(2)(b) had not been provided business cards by any of the officers present (Allegation F -Abuse of Authority: Failure to provide RTKA card, § 87(2)(g) (Allegation G -Abuse of Authority: Failure to provide RTKA card, § 87(2)(g)). § 87(2)(b) was issued two summonses as a result of the incident (Board Review 01).

Video footage of portions of the incident were recorded both by § 87(2)(b) on his personal device and by officers present on their Body-Worn Cameras (BWCs).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Josmar Loveraz threatened to arrest

§ 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Giselle Batista threatened to arrest

§ 87(2)(b)

It is undisputed that § 87(2)(b) was ultimately issued two summonses as a result of this incident. PO Batista acknowledged that she threatened to arrest § 87(2)(b) and PO Loveraz did not recall whether he did so. § 87(2)(g)

Allegation (C) Abuse of Authority: Police Officer Josmar Loveraz interfered with

§ 87(2)(b) s use of a recording device.

§ 87(2)(b) stated to the CCRB (Board Review 02) that he attempted to record video footage of the incident with his cell phone and that PO Loveraz instructed him not to do so,

a command with which § 87(2)(b) initially complied. § 87(2)(b) subsequently recorded footage of the incident surreptitiously by placing his phone inside his jacket's pocket.

PO Loveraz stated to the CCRB (Board Review 03) that he explicitly told § 87(2)(b) that he was permitted to record footage of the incident provided that he did so without manually operating the phone. PO Loveraz provided this limitation because he did not know whether § 87(2)(b)'s operation of the phone could result in his using it as a weapon or summoning people to "do something." PO Loveraz did not instruct § 87(2)(b) to cease recording footage.

A portion of BWC footage that PO Valdez recorded (Board Review 04) depicts PO Santana informing § 87(2)(b) that he will be issued a summons and requesting that he provide his "credentials" to the officers. § 87(2)(b)'s cell phone can be seen in his jacket's right breast pocket. When § 87(2)(b) sits and the phone moves out of view, PO Loveraz says, "Sir, what did I tell you about your phone? I said you can leave it there recording, but get off your phone."

§ 87(2)(g)

A civilian's right to record police activity can be limited when a violation of law is committed by the individual who is videotaping. NYPD Patrol Guide Procedure 203-29 (Board Review 05).

§ 87(2)(g)

Allegation (D) Abuse of Authority: Police Officer Giselle Batista refused to provide her name to § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Giselle Batista refused to provide her shield number to § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Giselle Batista failed to provide § 87(2)(b) with a business card.

Allegation (G) Abuse of Authority: Police Officer Richard Santana failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) stated that after he began recording footage, PO Batista threatened to arrest him, and he requested her name and shield number. PO Batista refused to provide this information, stating that she was not investigating § 87(2)(b) and was not required to provide this information to him.

PO Batista stated to the CCRB (Board Review 06) that § 87(2)(b) requested her name, shield number, and business card. PO Batista responded to his request for her name and shield number by holding name plate and shield, pointing them towards him, and saying, “It’s here.” § 87(2)(b) requested her shield number multiple times, and she responded to each request in the same manner. PO Batista did not recall verbally providing her name or shield number to § 87(2)(b) or whether § 87(2)(b) wrote this information. PO Batista responded to § 87(2)(b)’s request for her business card by informing him that she had made no contact with him, and she did not provide him with a business card for this reason. PO Batista did not recall Sgt. McNair speaking with § 87(2)(b) about the NYPD procedure involving business cards.

PO Santana stated to the CCRB (Board Review 07) that he drafted a summons for a female civilian, and as he did so, she looked “scared” by § 87(2)(b)’s demeanor and he “pulled her aside” for this reason. As PO Santana stood to the side of the bench on which § 87(2)(b) sat, § 87(2)(b) requested officers’ business cards. PO Santana did not know to whom this request was directed and did not think it was directed to him because § 87(2)(b) faced forward and would have had to turn his head back and to the right to look at PO Santana. PO Santana did not provide a business card to § 87(2)(b) because § 87(2)(b) did not directly address him and for no other reason.

PO Santana did not recall hearing PO Batista tell § 87(2)(b) that she was not required to provide him with her name, shield number, or business card. PO Santana did not hear the content of any interaction between Sgt. McNair and § 87(2)(b) including the procedure regarding when officers do and do not provide business cards.

Sgt. McNair stated to the CCRB (Board Review 08) that § 87(2)(b) requested PO Loveraz’s business card. Sgt. McNair informed him that according to the NYPD Patrol Guide, when a summons is issued, a business card need not be provided to him. § 87(2)(b) also requested PO Batista’s business card, and Sgt. McNair again provided him with the same information regarding the Patrol Guide. During his CCRB interview, Sgt. McNair presented a copy of a quiz (Board Review 09) that was administered to him prior to the issuance of the Patrol Guide procedure regarding business cards. This quiz contained the following explanation, verbatim: “If an encounter ends in an arrest or summons, it is not necessary to offer a business card.”

Officer Loveraz stated that § 87(2)(b) requested officers’ business cards and that he did not recall to whom the request was directed. PO Loveraz did not recall PO Batista speaking to § 87(2)(b) about business cards or Sgt. McNair informing § 87(2)(b) of when business cards are or are not provided to civilians. PO Loveraz did not recall § 87(2)(b) requesting PO Batista’s name or shield number during the incident and did not recall her providing this information.

In a portion of BWC footage PO Batista recorded during the incident (Board Review 10), § 87(2)(b) explains his interaction with officers to Sgt. McNair. He uses PO Valdez’s name, leans towards PO Batista, and says, “Officer.” PO Batista replies, “Batista,” and § 87(2)(b)

continues his narrative, stating her name as “Officer Batista.” In a portion of footage § 87(2)(b) recorded during the incident (Board Review 11), he addresses PO Batista, requesting her shield number. She replies, informing him that he could be arrested, and does not provide her shield number.

In a portion of BWC footage PO Batista recorded during the incident (Board Review 12), § 87(2)(b) requests PO Valdez’s shield number. PO Valdez says, “You see it, right?” § 87(2)(b) says, “No, I’m looking down. Could you please tell me?” PO Valdez provides his shield number to § 87(2)(b). § 87(2)(b) asks PO Batista, “Can I have your shield number?” PO Batista replies, “There’s no need to. I didn’t do no contact with you.” § 87(2)(b) and PO Batista engage in cross-talk, and during this, he asks, “What’s your shield number, please? Can I see your shield number?” PO Batista replies, “You see it. You could see it. I know you not blind.” This request is placed after the request for this information noted above.

In another portion of BWC footage PO Batista recorded during the incident (Board Review 13), § 87(2)(b) explains to Sgt. McNair that he would like PO Loveraz’s business card. Sgt. McNair informs § 87(2)(b) that he was issued a summons and that this “nullifies” a business card. § 87(2)(b) points to PO Batista and says, “Can I have her business card?” PO Batista replies, “I didn’t come in con-I didn’t observe what happened.” Sgt. McNair again speaks to § 87(2)(b).

In the video footage recorded by § 87(2)(b) during the incident (Board Review 14), at the 00m10s mark, he gestures towards PO Santana and says, “Can I get all your business cards, please?” PO Santana responds by instructing § 87(2)(b) to “take a seat” two times. At the 00m24s mark, PO Santana informs § 87(2)(b) of the NYS Penal Law code for which he will receive a summons, and § 87(2)(b) says, “Can I have all your business cards? That’s all I want.” PO Santana continues to explain the process of the stop and does not provide a card to § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g)

Officers are to courteously and clearly state their name, shield number, rank, and command, or otherwise provide this information, to anyone who requests this information. Officers are to provide Right to Know business cards upon the conclusion of law enforcement activities in which no summons is issued or arrest is made. In addition, officers are to provide

business cards, as appropriate, at the request of members of the public NYPD Patrol Guide Procedure 203-09 (Board Review 15). Notwithstanding the provisions by which an officer need not provide a business card to individuals in incidents resulting in arrest or summons, an officer shall offer a business card to any person requesting identifying information. New York City Administrative Code Section 14-174 (Board Review 19).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 16).
- PO Loveraz has been a member-of-service for two years, and this is the first CCRB complaint to which he has been a subject.
- PO Batista has been a member-of-service for three years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g).
- PO Santana has been a member-of-service for seven years, and this is the first CCRB complaint to which he has been a subject.

- Sgt. McNair has been a member-of-service for 13 years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of April 4, 2019, § 87(2)(b) has not filed a Notice of Claim with the City of New York regarding this incident (Board Review 17).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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Squad No.: _____

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
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Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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